

26STLC00627 26STLC00627

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Case Number: 26STLC00627 Hearing Date: July 7, 2026 Dept: 26

TENTATIVE

RULING:

Defendant Malwarebytes,
Inc.'s Motion to Require Plaintiff to Furnish Security is denied.

Analysis:

On January 29, 2026, Plaintiff Tsang Han Wang ("Plaintiff") filed the instant action against Defendant Malwarebytes, Inc. ("Defendant"). Defendant filed its Answer on March 9, 2026. On March 18, 2026, Plaintiff filed (1) the Application for Leave to File Memorandum of Points and Authorities in Excess of Page Limit; (2) the Demurrer to Answer; and (3) the Motion for Judgment on the Pleadings. On April 22, 2026, the Court sustained the Demurrer to the Answer with leave to amend as to the fifth through ninth and twenty-second affirmative defenses, and otherwise overruled the Demurrer. (Minute Order, 04/22/26.) Defendant filed its Amended Answer on May 12, 2026.

On May 14, 2026, Defendant filed the instant Motion to Require Plaintiff to Furnish Security. Plaintiff filed an opposition and objection on June 24, 2026, and Defendant replied on June 29, 2026. The opposition was untimely filed and served only eight court days before the hearing, however, the Court finds Defendant provided a substantive reply and was not prejudiced by the delay. The Court will consider all the papers.

Discussion

Request for Judicial Notice

and Evidentiary Objections

Defendant asks the Court to take
judicial notice of the following filings:

(1) May 4, 2026 Court Order in Tsang

Han Wang v. Electronic Waveform Lab, Inc., Los Angeles Superior Court, Case No. 26STLC00659, re: Ruling on Submitted Matter Denying Plaintiff Tsang Han Wang's Discovery Motions; (2) Sustaining, in Part, Overruling, in Part, Defendant Electronic Waveform Lab, Inc.'s Demurrers to Plaintiff Tsang Han Wang's Complaint; (3) Granting Defendant Electronic Waveform Lab, Inc.'s Motion to Declare Plaintiff Tsang Han Wang a Vexatious Litigant;

(2) February 2, 2026 Complaint in

Tsang Han Wang v. Electronic Waveform Lab, Inc., Los Angeles Superior Court, Case No. 26STLC00659; and

(3) May 5, 2026 Court Order in Tsang

Han Wang v. The Superior Court of the State of California for the County of Los Angeles, Appellate Division of the Los Angeles Superior Court, Case No. 26APCP00087, denying Plaintiff Tsang Han Wang's Writ Petition.

The Court takes judicial notice
of these filings as to the fact of their existence and the orders made therein.
The Court does not take judicial notice of the hearsay statements. (Evid. Code, § 452, subd. (d); *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564–1565.)
Plaintiff's evidentiary objections to the Bustos declaration in support of Defendant's Motion are overruled.

Order to Post Security

A defendant may move the
court "for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, [1] that the plaintiff is a vexatious litigant and [2] that there is not a reasonable probability that he or she will prevail in the litigation against the moving defendant." (Code Civ. Proc., § 391.1.) "If the court finds in the defendant's favor on these points, it orders the plaintiff to furnish security in an amount fixed by the court. (§ 391.3, subd. (a).) Failure to provide the security is grounds for dismissal. (§ 391.4.)" (*In re Marriage of Rifkin and Carty* (2015) 234 Cal.App.4th 1339,

1345.) “At the hearing upon the motion the court shall consider any evidence, written or oral, by witnesses or affidavit, as may be material to the ground of the motion.” (Code Civ. Proc., § 391.2.) Furthermore, a motion brought under section 391.1 prior to trial stays the litigation. (Code Civ. Proc., § 391.6)

On May 4, 2026, in Tsang

Han Wang v. Electronic Waveform Lab, Inc., Los Angeles Superior Court, Case No. 26STLC00659 (the “Waveform Lab case”) the Court ruled that Plaintiff met the definition of a vexatious litigant under Code of Civil Procedure section 391, subdivisions (b)(1) and (b)(3). (Motion, RJN, Exh. A, pp. 13-15.) Although Plaintiff argues that the vexatious litigant statute does not allow the Court to impose security on a plaintiff who was not deemed vexatious at the time the case was filed, the opposition cites no authority for such a limitation. (Opp., p. 7:20-21.) As Defendant points out, the security statute allows any defendant to seek an order furnishing security, which necessarily includes defendants in concurrent cases regardless of when they were filed. (See Code Civ. Proc., § 391, subd. (b)(4).) The first basis for an order of security is satisfied based on the Court’s ruling in the Waveform Lab case. (See Code Civ. Proc., § 391(b)(4).)

The Court does not find the second grounds for a security satisfied, as to whether Plaintiff has a reasonable probability of prevailing on the merits of this action. The Complaint alleges the following causes of action: (1) Pre-Employment Retaliation for Complaints of Unlawful Testing (Labor Code § 98.6); (2) Pre-Employment Retaliation under FEHA (Gov’t Code § 12940(h)); and (3) Ultra Vires Acts Exceeding Corporate Authority. Defendant points to the Complaint in the Waveform Lab case, which asserts identical claims, and where the Court found no reasonable probability of prevailing.

As explained below, Defendant’s invocation of the Waveform Lab decision is sufficient to address Counts One and Two but not Count Three. In Waveform Lab, as to Count One, brought under Labor Code section 98.6, the Court found that alleged violations of regulations promulgated under the FEHA were inapplicable as a matter of law. (Motion, RJN, Exh. A, pp. 5-6.) That legal determination is equally applicable here. Count One of the Complaint in this case likewise relies on alleged violations under FEHA which are not a basis for relief under Labor Code § 98.6. (See Complaint, ¶¶ 85, 88, 89; Grinzi v. San Diego Hospice Corp. (2004) 120 Cal. App. 4th 72, 87 (“the

Legislature . . . intended the phrase, “any rights,” in the final portion of section 98.6, subdivision (a), to similarly refer to rights “otherwise protected by the Labor Code.”.) Because the allegations are insufficient as a matter of law, Plaintiff is not reasonably likely to succeed on that claim. Plaintiff does not argue to the contrary in his opposition. (See Opp. at 14.)

As to Count Three in Waveform Lab, the Court found Plaintiff’s cause of action for ultra vires corporate activity, which is also brought in this action on the same grounds, was unsupportable as pled because no California authority has recognized that a job applicant can bring such a claim. (Motion, RJN, Exh. A, pp. 8-9; see Cal. Corp. Code, § 208(a) (limiting the ability to bring such a claim.) Again, Plaintiff does not defend this cause of action in his opposition.

As to Count Two in Waveform Lab, for FEHA pre-employment retaliation, the Court determined Plaintiff was not reasonably likely to prevail based on weighing the evidence in the record in that case. The Court concluded that Plaintiff could not prove the survey he was required to take was a prohibited “medical or psychological” examination or inquiry” within the meaning of California Code of Regulations, Title 2, § 11071 or that he had a good-faith belief that the survey was discriminatory. (Id. at Exh. A, p. 17.) Among other things, the Court concluded that it did not appear that Plaintiff could establish that the examination was performed by a health care provider, and therefore it was not a prohibited “examination” (2 CCR § 11065(m)); nor did it appear that Plaintiff could establish that it was a medical or psychological “inquiry” based on the attachments to the Complaint. (Id. at Exh. A, p. 17.) Further the Court found that Plaintiff was not reasonably likely to be able to show that he had a good faith belief that the survey was discriminatory because he had not seen the questions, and had, based on matters submitted for judicial notice in that case, engaged in a pattern of filing similar cases against a variety of employers. (Id. at Exh. A, pp. 17-18.)

As Plaintiff argues, the Court’s factual findings based on evidence in Waveform Lab cannot simply be transported into this case. (Opp. at 15.) As discussed above, Counts One and Three are deficient as a matter of law, and Plaintiff offered nothing to support a contrary conclusion. As to Count Two, however, the Court relied on matters submitted for judicial notice and the specific attachments to the

Complaint in that action, which included a screenshot of the test interface used by the Defendant in that case. The same materials are not before the Court here. For example, Defendant in this action did not ask the Court to take judicial notice of other strikingly similar cases filed by Plaintiff to support their contention that he is unlikely to be able to demonstrate that he acted in good faith. (See Exh. A, pp. 17 (taking notice for that purpose.) The Complaint in his case attaches generally available information off the internet about the Predictive Index, but not the page that Plaintiff was allegedly directed to by Defendant. The Court finds the record here comparable to that in *Muller v. Tanner* (1969) 2 Cal.App.3d 445, 464–465, cited by Plaintiff. (See Opp. at 15.) There, the court reversed the order for security where “[t]he only evidence on this point is the complaint itself and the conclusion, expressed in the statutory language, in defendant’s affidavit.” (Id. at 464.) Of course, here, the Court took judicial notice of the Court’s decision in *Waveform Lab*, but that notice does not extend to the truth of the Court’s findings in that case, or prove by fiat that they apply in this case. (See *Steed v. Department of Consumer Affairs*, 204 Cal.App.4th 112 (2012), (“A court may take judicial notice of (another) court’s action, but may not use it to prove the truth of the facts found and recited.”). Defendant’s reference to the Complaint and the Court’s decision in another case was not enough to meet its burden where matters of fact are at issue.

Accordingly, the Court finds that Defendant has not met its burden to show no reasonable likelihood of success on the merits. Defendant is a vexatious litigant but Defendant has not demonstrated that a security should be required.

Conclusion

Defendant Malwarebytes, Inc.’s Motion to Require Plaintiff to Furnish Security is denied.

Moving party to give notice.